Data Residency and Transportation
WyIT.2005

Policy Owner	Department of Enterprise Services, Data Privacy
Policy Contact	Pat Potter, Deputy Chief Data Officer
Policy Approver	Wyoming Data Governance Committee (WDGC)
Effective Date	September 12, 2025
Next Review Date	April 1, 2027
Policy Version	2026-09.1

Scope:

This policy establishes requirements for assessing potential exposure of sensitive information, activating appropriate response procedures, ensuring Governor's Office notification, and coordinating decisions regarding individual notification. This policy serves as a triage and coordination framework that triggers existing incident response and security threat response procedures established in WyIT 3010, Incident Response and WyIT 3009, Computer Security Threat Response.

This policy addresses the privacy-specific assessment requirements for determining sensitive information exposure and establishes coordination protocols with the Governor's Office and legal counsel for notification decisions. This policy supplements existing incident response procedures and does not replace technical response or security coordination established in other WyIT policies.

This policy does not change Agency responsibilities with respect to regulations that govern data exchanges, data privacy and data security requirements, or Agency responsibilities under Wyoming State Statute 16-4-202. No part of this policy is intended to supersede or supplant relevant federal and state controlling laws, rules, or regulations.

This policy serves as the state baseline. Agencies may implement more restrictive policies to meet applicable state and federal regulations or agency-specific requirements, provided they do not deviate substantially from this policy. In lieu of agency-specific policies, this policy shall serve as the governing standard.

Authority

This policy is promulgated under the authority of Wyoming State Statute 9-2-2906 and its subsections, the Department of Enterprise Technology Services is required to adopt and enforce information technology standards, and promote efficient use of information technology throughout state government.

Specifically, this policy is further promulgated under the authority of the below listed Wyoming State Statute subsections.

- Implements and maintains an information technology governance program for state agencies (W.S 9-2-2906,(b), (ii));
- Establishes and enforces data security and privacy policies and standards for the state data infrastructure Establishes review criteria for the agencies information technology projects, procurements and purchases. (W.S 9-2-2906,(b), (iii)); and

Adopts information technology policies and standards and ensures agency compliance with those policies and standards (W.S. 9-2-2906,(b), (vi)).

Audience

This policy applies to all Executive Branch agencies, boards, and commissions staff (collectively referred to as "agencies"). This policy is also applicable to consultants, affiliates, third party vendors and temporary employees that use or store state data

Definitions

Key Definitions, Acronyms, and Terms

Policy Statements:

1. TRANSPORTATION AND AT REST REQUIREMENTS

1.1. All Internal or Confidential Wyoming government data or information stored digitally shall be encrypted at rest using:

1.1.1. AES-256 encryption or cryptographically equivalent algorithm;

1.1.2. FIPS 140-2 Level 2 or higher validated cryptographic modules; and

1.1.3. Key management compliant with NIST SP 800-57 requirements.

[1], [2], [3], [4], [5]

1.2. All Wyoming government data or information shall be transferred using:

1.2.1. TLS 1.3 or cryptographically equivalent protocol;

1.2.2. FIPS 140-2 validated encryption implementations; and

1.2.3. Perfect Forward Secrecy (PFS) for external communications.

[1], [2], [3], [4], [6], [7], [6], [8]

1.3. The ETS Security Office shall, through routine security monitoring activities, identify if any data or information is being stored or processed outside the borders of the United States and its territories as defined in 8 U.S.C. § 1101.

[1], [3], [4], [5], [8]

1.4. The ETS Security Office will inform agencies if they find what appears to be sensitive data or information being transferred without encryption.

[9], [1], [10], [8], [3], [4], [12], [13]

2. INFORMATION GEOGRAPHIC EXCEPTIONS

2.1. All sensitive Wyoming government data or information, regardless of format, structure, or formal asset designation classified as Internal or Confidential shall be stored, processed, and maintained exclusively within the borders of the United States and its territories as defined in 8 U.S.C. § 1101. This requirement applies to all forms of digital storage, cloud services, backup systems, and data processing activities regardless of duration or purpose.
[9], [10], [14], [21], [13], [11]

2.2. The ETS Security Office shall, through routine security monitoring activities, identify if any data or information is being stored or processed outside the borders of the United States and its territories as defined in 8 U.S.C. § 1101.
[1], [22], [23], [24], [25], [21], [26], [3], [4], [5]

Applicable State Policies, Federal, State or Industry Rules, Laws, and/or Regulations

1. National Institute of Standards and Technology (NIST) SP 800-53, Rev 5
2. National Institute of Standards and Technology (NIST) Cybersecurity Framework v2.0
3. Center for Internet Security (CIS) Critical Security Controls Ver 8
4. Cybersecurity Maturity Model Certification (CMMC) Ver 2.0
5. ISO/IEC 27001
6. National Institute of Standards and Technology (NIST) Privacy Framework
7. Wyoming Statute .S. 9-21-101(a)(i)
8. WyIT.2001-S1, Data Owner Standard
9. National Institute of Standards and Technology (NIST) SP 800-171, Rev 2
10. FBI Criminal Justice Information Services (CJIS) Security Policy
11. Health Insurance Privacy and Accountability Act (HIPAA), Security Rule
12. Family Educational Rights and Privacy Act (FERPA), 34 CFR Part 99
13. IRS Publication 1075
14. WyIT.2005, Information Residency and Transportation
15. WyIT.2001-S2, Data Steward Standard
16. WyIT.2001-S3, Data Custodian Standard
17. WyIT.2001-S4, Data Domain Standard
18. WyIT.2001-G1, Information Classification Guide
19. WyIT.2001-G2, Information Classification Procedures Guide
20. Wyoming Public Records Act (W.S.§ 16-4-201 through 16-4-205)
21. WyIT.2013, Electronic Data Destruction and Sanitization
22. WyIT.2003, Data Backup, Storage and Restoration
23. WyIT. 2005, Information Residency and Transportation
24. WyIT.2009, “Clean Desk” Confidential Information and Sensitive Materials Policy
25. WyIT.2014, Data Sharing Agreement Documentation Governance
26. WyIT.3015, Physical Media

Compliance & Exceptions:

Compliance

Employees who violate this policy may be subject to appropriate disciplinary action up to and including discharge as well as both civil and criminal penalties. Non-employees, including, without limitation, contractors, may be subject to termination of contractual agreements, denial of access to IT resources, and other actions as well as both civil and criminal penalties.

Exceptions

Requests for exceptions to this policy shall be reviewed by the Chief Information Security Officer (CISO) and the Chief Information Officer (CIO). Departments requesting exceptions shall provide such requests to the CIO in accordance with WyIT.3002 Policy Exception Request.

The request should specifically state the scope of the exception along with justification for granting the exception, the potential impact or risk attendant upon granting the exception, risk mitigation measures to be undertaken by the IT Department, initiatives, actions and a time-frame for achieving the minimum compliance level with the policies set forth herein. The CIO shall review such requests; confer with the requesting department.

Any exception to established policy shall be defined and tracked as a risk to the state and established mitigating controls monitored by the agency.

Review/Approval:

Date Issued/Review Date

This policy shall be reviewed at least annually and updated / reviewed / approved as defined in the Office of Chief Information Officer (OCIO) Policy lifecycle.

The review and update process shall be coordinated by Governance, Risk and Compliance (GRC), completed by the policy owner and approved through the OCIO policy review workflow.

Approval

This policy as signed by the appropriate officer (listed below) is considered approved and enforced, per Wyoming State Statutes (W.S 9-2-2906,(b), (iii)) and (W.S. 9-2-2906,(b), (vi)).

To obtain a signed copy of this document, contact Enterprise Technology Services Governance, Risk and Compliance (ets-ocio-grc@wyo.gov).

Jeffrey Clines Officer Name	Chief Information Officer Officer Title
_____ Officer's Signature	_____ Date

Revision History

The current version of this policy, as identified in the Revision History below, supersedes all previous documents listed below.

Version	Change	Author(s)	Date of Change
2026-09.1	ETS Director signature	GRC	September 2026
2025-09.2	WyIT 2005, Information Residency, Updated Document Template	Pat Potter	September 2025
2024-06.1	WyIT 2005, Information Residency, Originally Published	Wyoming Data Governance Committee (WDGC)	June 2024